

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:

Liam H. Farrell

Application Tracking No. 097.0125904

Docket No. 2017-3

STIPULATION AND CONSENT ORDER

NOW COME, the State of Vermont, by and through State Prosecuting Attorney Rachel Allen, and the Respondent, Liam H. Farrell, who stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners ("Board") has authority to deny an applicant's license if it finds that the applicant has engaged in unprofessional conduct in any jurisdiction. 3 V.S.A. § 129(a); 26 V.S.A. § 4093; and the Rules of the Office of Professional Regulation.

Stipulated Facts

2. Liam H. Farrell ("Respondent") of Burlington, Vermont applied for licensure as a Non-Licensed & Non-Certified Psychotherapist on December 1, 2016. The application was assigned the following tracking number: 097.0125904.
3. On January 4, 2017, Respondent's December 1, 2016 application was preliminarily denied.

Violation One: 3 V.S.A. § 129a(a)(10). Conviction of a crime related to the practice of the profession or conviction of a felony, whether or not related to the practice of the profession.

4. In Respondent's December 1, 2016 application, Respondent disclosed that he was convicted of the following crimes:
 - a. On April 6, 2015, Respondent was convicted of Driving under the Influence, Fourth Offense, a felony, in Chittenden County, State of Vermont.
 - b. On April 6, 2015, Respondent was convicted of Eluding a Law Enforcement Officer, a misdemeanor, in Chittenden County, State of Vermont.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

Understandings

5. Respondent acknowledges that the facts above are true and that the conditions set out in the Consent Order below are appropriate and necessary to protect the public.
6. Respondent understands that the Allied Mental Health Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
7. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced Respondent's rights to a fair and impartial hearing if this agreement is not accepted by the Board and proceeds to a contested hearing.
8. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
9. Respondent is not under the influence of any drugs or alcohol at the time Respondent signs this Stipulation and Consent Order.
10. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
11. Respondent voluntarily waives Respondent's right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
12. Respondent agrees that the Order set forth below may be entered by the Board.

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board hereby **CONDITIONS** the Respondent's license to practice for a **minimum of ONE (1) year from the date of entry below**. The conditions are as follows:
 1. Issuance of License.
Upon the commencement of these conditions, Respondent shall be issued a license labeled "conditioned."

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

2. Length of Time of Conditions Imposed.

The conditions shall remain in place until Respondent has completed all conditions ordered. Respondent shall be subject to the conditions until Respondent completes a **minimum of one (1) year** of supervised practice in which he works at least forty (40) hours every two (2) weeks as a Non-Licensed & Non-Certified Psychotherapist.

3. Monitoring.

The Vermont Office of Professional Regulation ("OPR"), through the Enforcement Case Manager, shall be responsible for monitoring Respondent's compliance with these Conditions. All reports or correspondence regarding compliance with these conditions shall be submitted to the Case Manager in accordance with the Conditions listed below.

4. Practice Under Supervision.

Respondent shall practice under supervision for a minimum of one (1) year.

- a. Supervisor Requirements. Respondent shall practice as a Non-Licensed & Non-Certified Psychotherapist under the supervision of a pre-approved Licensed Clinical Mental Health Counselor, Licensed Alcohol Drug Counselor, Marriage and Family Therapist, or doctorate level Psychologist in good-standing and licensed by the State of Vermont ("Supervisor"). The supervising relationship shall not create a conflict of interest between the Respondent and the Supervisor. **The Supervisor have an in-person meeting weekly with Respondent.** must

- b. Respondent shall, within thirty (30) days of the date of entry of this order, cause the Supervisor to submit a letter, on letterhead, acknowledging receipt of the Stipulation and Consent Order and the ability to comply with the conditions in the Consent Order.

- c. If Respondent changes employment, Respondent shall notify the OPR Enforcement Case Manager of this change and submit the name, contact information, and resume of a new potential Supervisor within ten (10) days from the date of employment.

The Respondent also shall, within thirty (30) days of the date of entry of this order, cause the Supervisor to submit a letter, on letterhead, acknowledging receipt of the Stipulation and Consent Order and the ability to comply with the conditions in the Consent Order.

5. Reports from Employers/Program Director. Within one (1) month of the date of this order or within one (1) month of the commencement of employment and **quarterly** thereafter, Respondent shall cause every employer Respondent has worked for during the month to submit to the Board an evaluation of

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

Respondent's work performance and attendance during that month. These reports shall be submitted in writing. All employer reports shall indicate satisfactory performance (ie., consistently meeting all standards of practice) and attendance.

6. Prohibition on Employment. Respondent must practice as a Non-Licensed & Non-Certified Psychotherapist at an agency. Respondent is prohibited from working as an independent practitioner for the length of these conditions.
7. Random Alcohol Testing.
Respondent shall submit to random alcohol screenings at the request of the Board or its designee. Respondent shall designate a person or entity that has been pre-approved by the Board or its designee to administer random drug and alcohol screens. All testing shall be done on a random, unannounced basis and analyzed by a lab qualified to analyze samples for forensic purposes and approved by the Board. All urine specimens collected for tests shall be collected in an observed setting. All screens shall be negative.

Failure to appear for, refusal to provide, adulteration of, dilution of, or tampering with a sample for any urine screen shall cause that screen to be presumed positive. Any positive screen shall constitute a violation of this Order.

8. Abstain from Alcohol Use. Respondent shall abstain completely from the consumption or possession of alcohol.
9. Interview with the Board or its Designee. Respondent shall appear in person for interviews with the Board or its designee upon request.
10. Out-of-State Practice. Before any out-of-state practice can be credited toward fulfillment of these terms and conditions, Respondent shall first obtain approval from the Board. The Board will approve out-of-state mental health practice so long as Respondent can still comply with the provisions of this Consent Order. If Respondent receives discipline on a mental health license held in another state during the conditioned period, Respondent must inform the Board of such, in writing, within ten (10) days of receiving such discipline.
11. Notification of Place of Employment/Personal Address/Telephone Number.
Within ten (10) days of the date of entry of this Consent Order, Respondent shall notify the Board, in writing, of Respondent's current place of employment, personal address, and telephone number. Respondent shall further notify the Board, in writing, within forty-eight (48) hours of any change in employment (including resignation or termination), personal address, or telephone number.
12. Notification to Other States. In the event that Respondent is licensed in any other state(s), Respondent must inform the allied mental health licensing board of the state(s) in which Respondent is licensed of the conditional status of Respondent's Vermont license within thirty (30) days of the date of entry of this Order.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

13. License Renewal. This Order does not automatically extend the license and Respondent must comply with the requirements for license renewal.

14. Release of Information Forms. This Order requires Respondent to authorize drug and/or alcohol treatment providers to report information in verbal and/or written format and/or to discuss Respondent and any and all treatment rendered to Respondent for drugs and/or alcohol with the Board or its designee. Any and all of this information may be provided to the Office of Professional Regulation investigators, and that the information may be used for further prosecutions if so warranted or if the Office of Professional Regulation determines that said information violates the terms of this Order or any rules or laws governing the practice of a Non-Licensed and Non-Certified Psychotherapist.

Respondent is entitled to revoke this consent at any time. However, any revocation shall be considered a violation of this Order. This consent expires when the conditions are removed from Respondent's Non-Licensed and Non-Certified Psychotherapist license.

This Stipulation and Consent Order shall itself constitute a valid written consent pursuant to the requirements of 42 C.F.R. § 2.31. Respondent understands that Respondent's treatment provider may require Respondent's to sign a separate and distinct consent meeting the requirements of 42 C.F.R. § 2.31.

15. Costs. Respondent shall bear all costs of complying with this Consent Order.

16. Violation of this Order. If Respondent violates this Order the Board, after giving Respondent notice and an opportunity to be heard, may rescind or modify this Order and impose additional appropriate disciplinary actions. If a complaint of unprofessional conduct is made against Respondent during the term of this Order, this Order shall be automatically extended until the unprofessional conduct matter is concluded.

17. Completion of Conditional License Period.

Respondent shall submit a petition to the Docket Clerk to remove any and all conditions on Respondent's license. The State will assent to or oppose Respondent's petition. The Board will conduct a hearing if necessary.

Respondent bears the burden and must present proof that Respondent has fully complied with the terms of this Order and Supervised Practice is no longer necessary to protect the public.

B. Notwithstanding any provision above, the Respondent must continue to meet all Board requirements for maintaining a license, license renewal and license reinstatement.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

- C. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).
- D. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

Dated: 1/19/17

STATE OF VERMONT
SECRETARY OF STATE

By: [Signature]
Rachel Allen
State Prosecuting Attorney

Dated: 1/17/2017

LIAM H. FARRELL
RESPONDENT

By: [Signature]
Liam H. Farrell

APPROVED AND SO ORDERED:

Dated: 1/19/17

VERMONT BOARD OF ALLIED
MENTAL HEALTH

By: [Signature]
Chairperson

Date of Entry: 1/19/17

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402